



LIMITED-SOURCES JUSTIFICATION

ORDERS OR BPAs EXCEEDING THE SIMPLIFIED ACQUISITION THRESHOLD

J&A-25-0070

This acquisition is conducted under the authority of the Multiple-Award Schedule Program, 41 U.S.C. 152(3), Competitive Procedures, and 40 U.S.C. 501, Services for Executive Agencies.

1. Agency and Contracting Activity.

The Department of Homeland Security, U.S. Immigration and Customs Enforcement (ICE), Office of Acquisition Management (OAQ), on behalf of Enforcement and Removal Operations (ERO) proposes to award an order pursuant to FAR 8.405-6(a), Limiting Sources.

2. Nature and/or description of the action being approved.

- (a) Type of action: Hybrid, labor hour, firm fixed price order
- (b) Amount the current J&A is justifying: \$72,931,890.00
- (c) Brief Description: OAQ intends to procure staffing and other related services for immigration enforcement support teams (ESTs) from the following company.

Universal Strategic Advisors, LLC
2 Executive Circle
Suite 205
Irvine, CA 92614-6704

3. Description of Supplies/Services.

ICE's law enforcement mission requires it arrest and detain aliens unlawfully present in the United States to effectuate their removal. ICE Enforcement and Removal Operations (ERO) has an immediate need for staffing support in detention facilities, field offices and/or at other locations to augment processing functions from ERO field office law enforcement officers (LEOs) to ESTs.

The requirement is to provide up to one year of enforcement support staffing services with a 6-month base period (including a 90-day transition) and two, 3-month option periods.

Category	2019	2020	2021	2022
Operating Income	\$10,000,000	\$12,000,000	\$15,000,000	\$18,000,000
Operating Expenses	\$8,000,000	\$9,000,000	\$10,000,000	\$11,000,000
Operating Profit	\$2,000,000	\$3,000,000	\$5,000,000	\$7,000,000
Non-Operating Income	\$1,000,000	\$1,500,000	\$2,000,000	\$2,500,000
Non-Operating Expenses	\$500,000	\$750,000	\$1,000,000	\$1,250,000
Non-Operating Profit	\$500,000	\$750,000	\$1,000,000	\$1,250,000
Total	\$2,500,000	\$3,750,000	\$6,000,000	\$8,250,000



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4. Authority and supporting rationale and a demonstration of the proposed contractor's unique qualifications to provide the required supply or service.

Authority:

Select only one of the following circumstances justifying limiting sources pursuant to FAR 8.405-6(a)(1)(i) below and demonstrate the proposed contractor's unique qualifications to provide the required supply or service.

- ☒ 8.405-6(a)(1)(i)(A) An urgent and compelling need exists, and following the ordering procedures would result in unacceptable delays.
- ☐ 8.405-6(a)(1)(i)(B) Only one source is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized.
- ☐ 8.405-6(a)(1)(i)(C) In the interest of economy and efficiency, the new work is a logical follow-on to an original Federal Supply Schedule order provided that the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. The original order or BPA must not have been previously issued under sole-source or limited-sources procedures.

Rationale:

By the authority vested in the Constitution and the laws of the United States of America, including sections 201 and 301 of the National Emergencies Act (50 U.S.C. 1601et seq.), President Trump, upon finding a grave emergency and "present danger and imminent threat" exists, declared that, "a national emergency exists at the southern border of the United States." Proclamation 10886 - *Declaring a National Emergency at the Southern Border of the United States*, (January 20, 2025). In this Proclamation, President Trump directed the Department of Homeland Security to, with support from the Secretary of Defense, "obtain complete operational control of the southern border" and to "take all appropriate action, consistent with law, to prioritize the impedance and denial of the unauthorized physical entry of aliens across the southern border of the United States." To further protect the States from the unprecedented flood of illegal immigration into the United States that precipitated his national emergency declaration, President Trump directed the Secretary of Homeland Security, in coordination with the Secretary of State and the Attorney General, to "take all appropriate action to repel, repatriate, or remove any alien engaged in the invasion across the southern border of the United States on or after the date of this order...until I issue a finding that the invasion at the southern border has ceased." Proclamation 10888 - *Guaranteeing The States Protection Against Invasion*, (January 20, 2025).

President Donald Trump also issued a series of Executive Orders (EO) materially affecting ICE's mission and significantly increasing the Agency's critical need for uninterrupted and expanded immigration enforcement. President Trump directed ICE to employ all lawful



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means to ensure the faithful execution of the immigration laws of the United States against all inadmissible and removable aliens. E.O. 14159 - *Protecting the American People Against Invasion*, (January 20, 2025). Noting that many aliens unlawfully within the United States present significant threats to national security and public safety, committing vile and heinous acts against innocent Americans, the President directed the Secretary of Homeland Security “shall take all appropriate action to enable the Director of U.S. Immigration and Customs Enforcement, the Commissioner of U.S. Customs and Border Protection, and the Director of U.S. Citizenship and Immigration Services to set priorities for their agencies that protect the public safety and national security interests of the American people, including by ensuring the successful enforcement of final orders of removal.” E.O. 14159. Further, because enforcing our Nation's immigration laws is critically important to the national security and public safety of the United States, the President established that is, “the policy of the United States to achieve the total and efficient enforcement of those laws, including through lawful incentives and detention capabilities.” E.O. 14159.

E.O. 14165 - *Securing Our Borders*, January 20, 2025. Recognizing that the United States has “limited information on the precise whereabouts of a great number of these illegal aliens who have entered the United States over the last 4 years,” President Trump decided to “marshal all available resources and authorities to stop this unprecedented flood of illegal aliens into the United States.” Thus, the President directed “all appropriate action” to secure the Nation through means including,

- Detaining, to the maximum extent authorized by law, aliens apprehended on suspicion of violating Federal or State law, until such time as they are removed from the United States;
- Removing promptly all aliens who enter or remain in violation of Federal law;
- Pursuing criminal charges against illegal aliens who violate the immigration laws, and against those who facilitate their unlawful presence in the United States;
- Cooperating fully with State and local law enforcement officials in enacting Federal-State partnerships to enforce Federal immigration priorities;
- Take all appropriate and lawful action to deploy sufficient personnel along the southern border of the United States to ensure complete operational control
- Take all appropriate actions to detain, to the fullest extent permitted by law, aliens apprehended for violations of immigration law until their successful removal from the United States. E.O. 14165.



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Taken together, these EO's direct DHS to, among other things, take all appropriate actions to detain, to the fullest extent permitted by law, aliens apprehended for violations of immigration law until their successful removal from the United States.

As of February 2025, there are approximately 7.6 million illegal aliens on ICE's non-detained docket. ICE's workforce is less than 10,000 personnel with approximately 1,100 assigned to manage cases on the non-detained dockets. At least 25 percent of the non-detained population require assignment to a higher level of supervision due to criminal convictions, pending criminal cases, or receipt of final orders. ICE urgently requires additional resources to immediately implement the direction provided in the EOs. ICE would be unable to recruit, hire, vet, train, and deploy staff as quickly as a contractor can.

ESTs will bolster the workforce and revamp how ICE manages its non-detained population by moving purely administrative functions from field office law enforcement staff (LEO) to ESTs thus increasing the LEO time spent performing mission critical enforcement and removal actions. ESTs will give ICE the ability to reassign at least 675 officers to tasks that better align with the EOs. With ESTs, non-detained docket officers will be able to take all appropriate actions to comply with the EO's by prioritizing conducting at-large arrests, removals, and detention related activities.

ESTs will manage field office alien check-ins, monitor immigration case statuses (and the outcome), assist with coordinating removals, update contact information to ensure that the alien can be located, respond to telephone calls, triage complaints and grievances, manage outreach mailboxes, enter data into ICE's system of record, manage alien files, capture biometrics, organize and collect immigration related documents, field questions related to the immigration process, coordinate with ICE to assign aliens to an appropriate monitoring program, and notify ICE if someone is not complying with the terms of a conditional release or when someone is a risk to community safety.

ERO has approximately 50,000 detention beds and plans to double this amount in 2025. The ESTs will be utilized to conduct many of the same administrative processing tasks that will be done in the non-detained setting and apply those tasks to the detained setting for aliens in ICE custody.

Expediency of award is necessary in order to meet the emergency and mission critical immigration enforcement and border security requirements of the EOs. US Advisors' track record, operational familiarity, and capabilities minimize risks to successful performance; therefore, expediency with the procurement processes will reduce oversight time and effort. Given the highly regulated nature of enforcement and removal activities, US Advisors is the only vendor that is able to recruit and implement an immediate staffing solution that ensures operational needs are met in line with legal and procedural requirements to meet this urgent requirement to address the national emergency.



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US Advisors demonstrates extensive experience both managing large staffing contracts as well as knowledge about the immigration process that is not easily available from other

vendors without extensive training and support from ERO; training and support that is not currently available. They provided similar support to ICE's Emergency Family Staging Centers (EFSC) to include administrative tasks related to immigration processing, data entry, facility identification, and training support. The EFSC project required the very quick assignment of staff across eight southwest border sites, and US Advisors was able to rapidly recruit, vet, train, and deploy staff with the necessary skillset.

5. Determination by the ordering activity contracting officer that the anticipated order represents the best value consistent with FAR 8.404(d).

This order will be placed in accordance with FAR 8.404, "Use of Federal Supply Schedules." The General Services Administration (GSA) has already negotiated fair and reasonable pricing rates. Discounts to these GSA schedule rates will be requested. Additionally, prior to issuance of the task order, the ordering activity will consider the level of effort, and the mix of labor proposed to perform the specific objectives being ordered in order to determine that the total price is reasonable. The contractor's labor mix and level of effort will also be compared to the Independent Government Cost Estimate (IGCE).

6. A description of the market research conducted among schedule holders and the results, or a statement of the reason market research was not conducted.

Given the national emergency, an immediate award is necessary. Multiple vendors have contacted ICE with expressions of capability in this area. However, US Advisors has demonstrated experience that aligns to ICE's immediate mission needs and can perform with minimal governmental intervention. ICE will continue to conduct market research during the performance period. ICE is currently planning an industry day in anticipation of soliciting a competitive procurement.

7. Any other facts supporting the limited-sources justification. Additional facts may be stated in this section. If there are no additional facts, you must state that here.

ICE intends to pursue a long-term competitive contract to meet its future mission requirements.

8. A statement of actions, if any, the agency may take to remove or overcome any barriers that led to restricted consideration (i.e., limited-sources) before any subsequent acquisition for the supplies or services is made.

US Advisors is the only Federal Supply Schedule contractor that ICE is aware of that can perform this urgent requirement within the timeframe needed. ICE recognizes that there may be other Federal Supply Schedule vendors who ICE is not aware of who may be able to perform these critical services outside of the current emergency. Accordingly, ICE is currently defining its future mission requirements for a future competitive procurement. During the performance period of this limited-sources procurement, ICE will assess its



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longer-term mission needs, identify opportunities for industry engagement, and intends to solicit a competitive procurement for this requirement..

In furtherance of its goal to conduct a future competitive procurement for these services, ICE/ERO is planning a nationwide industry date to identify support for all ERO business lines. The industry day will cover field operations, removals, bed space, etc. This industry day and continuous review of agency requirements will enable the agency to explore all potential options to support the detention and removal mission.

9. DHS intends to post this requirement on sam.gov pursuant to FAR 8.405-6(a)(2).

ICE will post the justification on sam.gov in accordance with FAR 8.405-6(a)(2)(ii) within 30 days after award.



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10. Technical/Requirements Personnel Certification.

Pursuant to FAR 8.405-6(c)(2)(x), I certify that this requirement meets the Government's minimum need and that the supporting data, which form a basis for the Limited-Sources Justification, are accurate and complete.

[Redacted Signature]

Technical Representative/COR

Date

11. Contracting Officer Certification.

[Redacted Signature]

Contracting Officer

Date

12. Approval.

Pursuant to FAR 8.405-6(c)(2)(xi), I hereby determine the circumstance identified in Section 4 applies.

[Redacted Signature]

Competition Advocate

Date

Note: The Competition Advocate approves when the action is equal to or exceeds \$750K but is less than \$15M.

ALBERT J DANTON

Digitally signed by ALBERT J DANTON
Date: 2025.03.26 08:41:40 -04'00'

Head of Contracting Activity

Date

Note: The Head of Contracting Activity (HCA) approves when the action is equal to or exceeds \$15M but is less than \$75M.